

The Claremont City Council held a meeting on Wednesday, January 11, 2017, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

Ward I Councilor Carolyn Towle
Ward II Councilor Scott Pope
Assistant Mayor Victor Bergeron
Mayor Charlene Lovett
At-Large Councilor Allen Damren
At-Large Councilor Bruce Temple
Ward III Councilor Nicholas Koloski
At-Large Councilor John Simonds

Absent:

At-Large Councilor Keith Raymond

Also present were:

Patrick MacQueen, Acting City Manager
Jane Taylor, City Solicitor

AGENDA CHANGES

None

REPORT OF THE SECRETARY

A motion was made by Mr. Damren and seconded by Mr. Simonds to accept the minutes of the December 14, 2016, City Council meeting.

Voice vote: motion carried 8-0.

A motion was made by Mr. Simonds and seconded by Ms. Towle to accept the minutes of the December 21, 2016, City Council meeting.

Voice vote: motion carried 8-0.

A motion was made by Ms. Towle and seconded by Mr. Damren to accept the minutes of the December 28, 2016, City Council meeting.

Voice vote: motion carried 8-0.

MAYOR'S NOTES

Mayor Lovett thanked everyone who participated in the Meet & Greet for Acting City Manager Patrick MacQueen and incoming City Manager Ryan McNutt.

Mayor Lovett said the School Board was meeting tonight. The School Superintendent is aware of the Council schedule and tries not to schedule School Board meetings on the same night, but they had to have a public hearing before January 17 or 18, so it couldn't be helped.

Mayor Lovett read a letter into the record from Cheryl Jones, Ward 2, regarding the residency requirement in the Charter for Police and Fire Chiefs and that she is in favor of it. She referenced DHMC (Dartmouth Hitchcock Medical Center) residency requirements for certain staff that have to live within 20 minutes of the hospital.

Mayor Lovett said that DHMC's website does not include Claremont on its list of places to live. She will work with Peter Wright, Valley Regional Hospital, on that.

Ms. Towle thanked Chuck Allen and his crew at Arrowhead for the New Year's Eve events.

CITY MANAGER'S REPORT

Patrick MacQueen, Acting City Manager, briefed Council on his report.

- Talked about the July 4th fireworks that have to be ordered and paid for in January if we are going to have a fireworks show on July 4th. The JSL (Junior Sports League) building has not been sold and it needs to be heated to 50 degrees again this year to prevent damage to the roof. The cost for heat and maintenance is at \$2,500 and that is not in the budget.
- Regarding Current Use, approximately 69% (257 parcels) of the City's land is enrolled in the NH Current Use program. The Assessing Department is reviewing the properties in Current Use to verify that they are still in compliance.
- The FY 2018 budget forms have gone to all departments and they have been asked to submit three separate budgets: one "normal" budget; one level-funded budget; and one that is 5% less than this year.
- A labor petition has been received from New England Police Benevolent Association to represent the Police employee bargaining unit.
- Public Works is looking at the pros and cons of developing solar power at the Waste Water Treatment Plant facility.

- LED Street Lighting Project is over half-way completed. Costs are estimated to drop from about \$13,000/month to about \$6,500/month.
- Mr. MacQueen will request department recommendations for fee revisions.
- A list of tax deeded properties will be given to the Council in April.
- He talked about HB 254 which will make changes to the Assessing Standards Board and HB 178 which would establish a commission to study processes to resolve Right-to-Know complaints.

Ms. Taylor said she spoke to State Representative Ray Gagnon regarding HB 254 with concerns of having a board with few members with assessing expertise on it.

Mr. Temple asked if the City is beginning to develop solar power, shouldn't the Council look at comprehensive solar citywide. Mayor Lovett said she sits on the Planning Board and the draft of the Energy chapter of the Master Plan discusses that. It also discusses establishing an energy committee. Mr. Temple said there are a lot of City properties that might make good solar fields.

Mr. Damren asked, regarding Current Use, how long property owners have to respond to a notification of deficiency. Mr. MacQueen said he didn't know and would have to check.

Mr. Bergeron said he was in favor of putting the fireworks in the budget, but with the expenses that are in front of the Council (i.e. 23% increase in health costs), he questioned paying for fireworks when the City might have to layoff people.

Mr. Damren said the time to talk about changing the fireworks would be at the next budget session.

Mayor Lovett asked about asking for donations to offset the cost of the fireworks.

Mary Walter, Finance Director, said the fireworks have to be paid for now to get them ordered in time for July 4th. If money comes in, it would be offsetting revenue and would be put into a revenue account.

Mr. Koloski said the fireworks should be funded this year and next year the City should look for other funding. He said a lot more people enjoy the fireworks show than the number of people who ride the bus. He is in favor of funding the fireworks this year.

Mr. Temple talked about the \$300,000 additional expenses that will be discussed that the City doesn't have the money for.

Ms. Towle said the JSL will require unplanned funds, so Council needs to be thoughtful. She agreed with Mr. Koloski.

Mayor Lovett asked with regard to expenditures, do they support the Master Plan or not. She agreed with Mr. Temple that there are serious issues coming up and there will be competing needs. She said the fireworks are not a need. Her concern is that Council had this conversation last year and nothing changed. She asked if the community wants to continue with fireworks can it be funded differently.

Mr. Koloski said he doesn't think the Master Plan has fireworks in it. He said 50% of the respondents to a community survey said they don't have community pride and people say there is nothing to do here. He noted the Master Plan is being "beefed up" in this area.

Ms. Towle asked why there is so much lead time for payment for this. Mark Brislin, Parks and Recreation Director, said July 4th is one of the busiest times for fireworks companies and they book early. An RFP was done last year for three years. If the fireworks are paid for in January, we get an extra 10% in fireworks.

Mr. Bergeron agreed with everything that was said and with Mr. Koloski, however no one knows what is coming down the road. He is in favor of the fireworks, but acknowledges there are a lot of things to pay for. If it comes down to having to layoff people or having the fireworks, he would vote no to funding the fireworks.

At 7:08 p.m. Mayor Lovett called a recess so that a bat could be removed that had flown into Council Chambers. The meeting continued at 7:15 p.m.

Mr. MacQueen said the City is already authorized to pay for the fireworks. He suggested changing the wording to confirm the City Manager's request to purchase fireworks for July 4th, 2017. Mr. Damren and Ms. Towle agreed to the change.

A motion was made by Mr. Damren and seconded by Ms. Towle to confirm the City Manager's request to purchase fireworks for July 4th, 2017.

Roll call vote: motion carried 7-1 with Mr. Bergeron voting no.

Mayor Lovett said whatever the City Administration can do to put out the word that the City would like to accept donations for the fireworks, would be helpful.

Bernie Folta, Ward 3, asked how many landowners are involved in Current Use and how many are resident landowners versus nonresident landowners. Also, he asked for clarification regarding Mr. Koloski's request for Current Use information.

Mr. Koloski said he wanted to know if Marlene Jordan, Assessing Technician, needed assistance with Current Use and if so, to get her what she needed.

Mayor Lovett asked for a future discussion of the process for taking something out of Current Use.

Mayor Lovett asked to have an update on the action plan for the JSL building.

Mr. Damren asked about the Claremont Savings Bank Community Center revenues and expenses in the Finance Report. There seems to be an error in the numbers. Ms. Walter will check it out and send out corrected information.

Mayor Lovett asked about Parks and Recreation organized bus trips and if there is a point where a trip might be cancelled due to not enough people signing up. Mr. Brislin said that point would be where they don't lose money. Mayor Lovett asked about the Employee of the Month Program. Mr. Brislin said it started in December. All Parks and Recreation staff vote on the Employee of the Month. They publicize the winner's name. The winners also get small tokens and gift certificates that were donated by local businesses.

Mayor Lovett talked about Planning and Development. She asked Mr. MacQueen to have totals from the previous year included with the current building inspections and permits issued.

Ms. Towle asked for an update on the Sugar River Drive property. Ms. Taylor said an enforcement notice has been sent out.

Mayor Lovett asked that the Police Commission Report not have such a dark DRAFT watermark. It makes the text underneath unreadable.

APPOINTMENT TO BOARDS AND COMMITTEES

Parks and Recreation Commission

A motion was made by Mr. Damren and seconded by Mr. Pope to appoint Daniel Ryan to seat A5, At Large of the Parks and Recreation Commission.

Voice vote: motion carried 8-0.

CITIZEN'S FORUM

Bernie Folta, Ward 3, asked if incoming City Manager Ryan McNutt, is a member of the International City & County Management Association. Ms. Walter said his resume says he is.

NEW BUSINESS

Resolution 2017-22 Bus Transportation Funding – Public Hearing

Southwestern Community Services, Inc. (SWCS) is now operating public transportation services in Sullivan County. The SWCS has requested a contribution from the City in the amount of \$30,000.00 to help support these transportation services. The City has determined it should contribute the amount of \$22,500.00 to SWCS for the operation of public transportation services in Sullivan County, a sum which is not included in the City's current budget. This resolution is

to raise, appropriate and expend the sum of \$22,500.00, said sum to be taken from fund balance (with no impact on the tax rate), for the purpose of contributing to the Sullivan County Public Transportation Program, as operated by SWCS.

A motion was made by Mr. Damren and seconded by Mr. Pope to adopt Resolution 2017-22 Bus Transportation Funding

Mr. Koloski said he will support this, but he wants to closely monitor the bus service's progress because he views this as startup. He said this in no way commits the City for future funding.

Mayor Lovett said she sent an email to SWCS asking for the first three months of ridership data. She said SWCS has hired Terri Page to be their transit program manager; she has a lot of experience with public bus transportation. Mayor Lovett asked SWCS to come to Claremont in April to share a full six months of operational information.

Mr. Damren acknowledged this doesn't obligate the City going forward. He thinks it is in the City's best interest to show support for public transportation.

Mayor Lovett said the current Master Plan talks about supporting public transportation as much as possible. In the upcoming Master Plan, it will also be referred to in the Energy chapter.

Mayor Lovett opened the public hearing.

Bernie Folta, Ward 3, said there is a demonstrated need in the county to have this service and Claremont would be remiss to not fund this. He talked about a stalled initiative to have a Route 120 commuter bus to Lebanon and Hanover (medical). He asked if that became a reality, would Claremont contribute to it as well.

Walter Stapleton, Ward 3, said he supported the bus experiment and he is in favor of this transportation. He said this is a community asset.

Mayor Lovett closed the public hearing.

Mr. Temple talked about the Vermont Park and Ride and that people are able to take a bus to the Upper Valley for a fee. He said with transportation, people could live here and work in the Upper Valley.

Mayor Lovett said Terry Page, SWCS, might be someone to invite to a Council meeting to talk about their vision for the future.

Mr. Pope said Mr. Temple had a good point about transportation to the Upper Valley. He talked about Amtrak and one way to increase its ridership was to promote it. He suggested the City could start promoting the bus service.

Ms. Towle suggested bringing Representative John Cloutier (member of the Public Works and Highways Committee) into that meeting.

Roll call vote: motion carried 6-2 with Messrs. Bergeron and Temple voting no.

Resolution 2017-23 Proceeds from First Night Button Sales – Public Hearing

On December 31, 2016, the Claremont Parks & Recreation Department (the "Department"), in conjunction with the Claremont-Sugar River Rotary Club (the "Rotary Club"), co-sponsored First Night activities (the "Event") as a community celebration of the New Year. The Department collected \$156.00 from sale of First Night buttons, which was part of the Rotary Club's fundraising activities. The Department would like to now distribute these funds to the Rotary Club.

A motion was made by Mr. Simonds and seconded by Mr. Damren to adopt Resolution 2017-23 Proceeds from First Night Button Sales.

Mr. Koloski thanked the Parks and Recreation Department and the Rotary Club. He noted that people didn't have to purchase a button to attend the events.

Mr. Brislin said the Event was sponsored by the Rotary Club and they sold buttons to help offset some of the cost of the Event. \$156 was just from the sale of buttons at the CSB Community Center. Other businesses also sold buttons. Mr. Brislin thanked the Rotary Club for taking on this Event. He said the Event keeps getting bigger and better each year.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote: motion carried 8-0.

Ordinance 552 Elderly Exemptions – First Reading

The purpose of this proposed change is to increase the income limit for an unmarried elderly taxpayer to \$22,000.00 and the combined income limit for married elderly taxpayers to \$29,000.00. The net asset limit has been increased to \$60,000.00.

Enactment of this ordinance will increase the income and asset limits for single and married elderly taxpayers.

Mr. Koloski thanked Marlene Jordan, Assessing Technician, for her hard work on this.

Mr. Pope said the current limits are \$19,600 for single, \$26,600 for married and the asset limit is \$50,000.

Ms. Taylor said the limits were reviewed in 2013, but were not changed.

Mayor Lovett said the proposed limits are \$22,000 for single, \$29,000 for married and the asset limit of \$60,000, which does not include the house or land it sits on.

Ms. Jordan has a list of people who may qualify and will send applications to them.

A motion was made by Mr. Bergeron and seconded by Mr. Simonds to adopt Ordinance 552 Elderly Exemptions on first reading.

Mr. Bergeron read the explanation of proposed action into the record.

Voice vote: motion carried 8-0.

Order for Special Election to Consider Charter Amendments

Ms. Taylor said Council needs to call for a special election not less than 60 days before the target date, which is March 14, 2017. This will allow the special election to be held on the same date as the school election which will save the City some money.

A motion was made by Mr. Koloski and seconded by Mr. Simonds that the Claremont City Council, pursuant to RSA 49-B:5, hereby calls for and sets a special municipal election to be held on March 14, 2017 and orders the amendments to the Claremont City Charter, as proposed by the Claremont City Council, to be placed on the ballot at the March 14, 2017 special municipal election.

Voice vote: motion carried 8-0.

Motion to Exempt City Manager from Membership in NH Retirement System

Ms. Taylor said the new City Manager, who has the option to belong or not belong, has opted not to belong to the NH Retirement System and Council has to vote on it.

Mayor Lovett confirmed that it was Mr. McNutt's request to not be a part of the NH Retirement System.

A motion was made by Mr. Koloski and seconded by Mr. Damren that the Claremont City Council, pursuant to RSA 100-A:22, hereby modifies its participation in the New Hampshire Retirement System by exempting its chief administrative officer, incoming City Manager Ryan W. McNutt, from compulsory membership in the New Hampshire Retirement System as of the date of his hiring.

Voice vote: motion carried 8-0.

COMMITTEE REPORTS

Mayor Lovett said the Planning Board is starting the process to review drafts of chapters of the Master Plan. They are finishing the review of the Energy chapter and then will move to Natural Resources.

Mr. Koloski said he is on the Planning Board, but he hasn't been able to attend a lot of the meetings, because of personal obligations. He goes when Assistant Mayor Bergeron can't attend. He said if someone else wants the seat, he would let them take over.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mayor Lovett said she has been coordinating with the School Superintendent Dr. McGoodwin and School Board Chair Rapp for a joint Council/School Board meeting. January 19th or 24th are suggested dates. She said she feels it is important to meet with the local Delegation sooner rather than later on certain topics. The proposed agenda includes updates on the lead poisoning prevention effort, reduction of the stabilization grants and an overview of each other's budgets.

Mayor Lovett asked about the SAFER (Staffing for Adequate Fire and Emergency Response) grants. Mr. MacQueen said he is working with the Fire Chief regarding documenting the information with the affected Fire Department employees.

Mr. Damren asked whether or not Council wanted the budget broken down into operating and capital budgets.

Mr. Temple suggested putting that discussion on the February agenda. He asked Mr. MacQueen to give a brief outline of the pros and cons of the current, all-encompassing budget versus approving two budgets (one for operations and one for the CIP (Capital Improvements Plan)).

Mr. MacQueen said what he is most used to is to start a capital budget immediately after the operating budget is adopted. It is developed with all the departments the same way you do an operating budget including all of the funding, debt service and detailed description of each project, and then it is given to the Planning Board for approval/adoption. It's a planning guide at that point. Then it's given to the Council for its endorsement, but Council is not adopting a budget at that time. Once adopted, it's time for the departments to start working on the operating budget. Once the operating budget is finalized, he would put the endorsed capital projects into the back end of the operating budget. It is part of the operating budget, but is just shown separately by department. He likes the idea of discussing the capital budget in advance of the operating budget. Capital planning follows the Master Plan.

Mayor Lovett said the Planning Board is in the process of updating the CIP. They are trying to be more diligent on prioritization from a community-wide perspective and how it correlates with the Master Plan.

Mr. Temple said he would like to see the Enterprise Funds as part of the CIP when it's presented to the Council.

Bernie Folta, Ward 3, said Council needs to decide whether or not to continue having leases in the CIP.

Mr. MacQueen said the CIP that he would develop would include all capital projects items and the method of funding.

CONSULTATION WITH LEGAL COUNSEL

Ms. Taylor said she passed out information to the Council that covered changes to RSA 91-A that went into effect January 1, 2017, which will require all votes taken in non-public session to be recorded in the minutes, identifying the vote of each member.

ADJOURNMENT

At 8:46 p.m., a motion was made by Mr. Pope and seconded by Mr. Temple to adjourn.

Voice vote: motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council